

(Unofficial)

Notification of the Ministry of Public Health

(No. 450) B.E. 2567 (2024)

Issued by virtue of the Food Act B.E. 2522

Re: Labeling of Prepackaged Foods

It deems appropriate to amend the notification of the Ministry of Public Health, Re: Labels.

By the virtue of provisions of Section 5 in the first phrase, and 6 (10) of the Food Act B.E. 2522 (1979), the Minister of Public Health hereby issues the notification as follows:

Clause 1. The following Notifications shall be repealed

(1) The notification of the Ministry of Public Health (No. 367) B.E. 2557 (2014), Re: Labeling of Prepackaged Foods, dated 8th May B.E. 2543 (2014),

(2) The notification of the Ministry of Public Health (No. 383) B.E. 2560 (2017), Re: Labeling of Prepackaged Foods (No. 2), dated 27th February B.E. 2560 (2017),

(3) The notification of the Ministry of Public Health (No. 401) B.E. 2562 (2019), Re: Labeling of Prepackaged Foods (No. 3), dated 25th April B.E. 2562 (2019),

(4) The notification of the Ministry of Public Health (No. 410) B.E. 2562 (2019), Re: Labeling of Prepackaged Foods (No. 4), dated 14th August B.E. 2562 (2019),

Clause 2. In this Notification

“Prepackaged Foods” means foods packed in containers for sale.

“Expiration Date” means the date which signifies the end of quality of food under any stated storage conditions, after this date the food cannot be marketable.

“Consume before date” means the date which signifies the end of the period of food to have the best quality under any stated storage conditions stated on the label. Beyond this date, the quality of the food may change, after this date the food cannot be marketable.

“Re-Packing” means taking food from former container and packing in sub containers, excluding make, mix, prepare, cook such food.

“Allergen” means a substance that can cause an intolerance effect when taking into body, despite the fact that it does not cause any harm to normal person only allergic person that include hypersensitivity.

“Color” means color according to the notification of Ministry of Public Health regarding food additives

Clause 3. Prepackaged Foods shall be made for labeling except for the following foods:

(1) Food which producers can provide consumer at that time for information related to such food such as food hawkers, food stalls, via electronic commerce system.

(2) Food which are not passed through any processing

(3) fresh food which are peeled, removed, eviscerated, trimmed, or any other means to reduce size, which are not sold directly to consumers, either may be cooled or not and packed in containers which are able to see condition of food in the containers.

(4) Prepackaged Food which are produced and sold to serve in food shops, restaurants, hotels, schools, academic institutes, hospitals or any other same kinds of these and also including food delivery services.

Food under (1), (2) (3) and (4), if having received food serial numbers shall follow this Notification.

Clause 4. Label in any languages, texts, picture, pictorial, invented designs, mark, brands or trademarks, registered trade mark shall be presented in the following manners:

(1) Not false or deceptive to create gullibility or misleading its important characteristics;

(2) Name of food, composition of food, proportion of food, quantity of food or properties shall not be presented in false or deceptive;

(3) Words, name, pictures, pictorial, invented designs, marks or trade mark shall not be presented in such a way to mislead that foods contain such ingredients that actually there is no such ingredients or contain in small amount which its properties cannot be given.

(4) Words or texts shall not be homophone, homograph that communicate to express boasting, false, exaggerated quality, properties to create gullibility;

(5) Not be opposed to Thai culture and morale or indicate to ruin dignity of Thai language.

(6) Not to promote or to cause of conflict, disharmony or negative effect both directly and indirectly to society, culture, morale, tradition, or behavior regarding genders, language and violence.

Clause 5. Labeling of Prepackaged Food manufactured for sale or imported for sale or to sell shall have text in Thai language and shall have the following particulars, unless the Food and Drug Administration (Thai FDA) make an exemption for any texts;

(1) Name of food (if any);

(2) Food serial number;

(3) Name and address of manufacturer or packers or importers or head office, as the case may be, as follows:

(3.1) The name and address of the manufacturer or packer for sale, as the case maybe, may also indicate the name and address of the head office of the manufacturer or packer for domestically produced food.

(3.2) The name and address of the importer, including the name and country of the manufacturer, for imported food products.

The information on the label in (3.1) and (3.2) shall clearly convey to enable consumers to understand whether it is the manufacturer, packer, head office (in the case of production or packaging), or importer, as the case maybe.

(4) Contents of Food in metric system;

(4.1) For solid foods, by net weight; unless it is not feasible to display the net weight, in which case the quantity should be indicated.

(4.2) For liquid foods, by net volume;

(4.3) For semi-solid or other appearances, by net weight or net volume.

If such foods have been prescribed for drain weight according to the Notification; drain weight shall be displayed.

(5) Percentage by weight of main ingredients. Quantities may also be arranged in descending orders, excluding

(5.1) Label of such food has total space less than 35 cm², however text of main ingredients shall be displayed on the containers of such food or;

(5.2) Such food has only one ingredient excluding food additives or flavor as mixture or;

(5.3) Dried, powdered or concentrated food that have to dilute or dissolve before consumption may display either main ingredients in average percentage by weight or when such food is diluted or dissolved or both according to instruction for eat as specify on label.

(6) The statement "Information for food allergy: contains" shall be used when allergens are ingredients of the food product, or "Information for food allergy: may contain" when there is potential cross-contamination during production processes, as applicable.

(Specify the type or category of food that contains allergens or substances that may cause hypersensitivity reactions.) Alternatively, similar meaningful phrases may replace “Information for food allergy”. Moreover, the statement and the specified allergens or others substances that may cause hypersensitivity reactions shall be clearly visible and easily legible in a prominent location on the label.

If the statement “Information for food allergy” is not used, then “contains” or “may contain” shall be displayed in a frame with prominently and clearly legible.

Types and kinds of food in Para 1 that are allergen or hypersensitivity substances are as follows:

(6.1) Cereals containing gluten, i.e. wheat, rye, barley, oat, spelt, or their hybridized strains and their products; except

- (a) Wheat based glucose syrups including dextrose;
- (b) Wheat based maltodextrins;
- (c) Glucose syrups based on barley;
- (d) Alcohol distilled from cereals;

(6.2) Crustacea i.e. crab, shrimp, mantis shrimp, lobster and their products;

(6.3) Eggs and egg products;

(6.4) Fish and fish products; except fish gelatin used as carrier for vitamin or carotenoid preparations;

(6.5) Peanut and their products;

(6.6) Soybean and their products; except

- (a) Fully refined soybean oil and fat;
- (b) Natural mixed tocopherols (INS06), natural D-alpha-tocopherol, natural DL-alpha-tocopherol, natural D-alpha-tocopheryl acetate, natural DL-alpha-tocopheryl acetate, natural D-alpha-tocopheryl acid succinate from soybean sources;

(c) Vegetable oils derived phytosterols and phytosterol esters from soybean sources;

(d) Plant stanol ester produced from vegetable oil sterols from soybean sources;

(6.7) Milk and dairy products including lactose; except lactitol from milk and milk products.

(6.8) Tree nuts and their products, i.e. almond, walnut, pecan, etc.;

(6.9) Sulphite at concentrations of 10 mg/kg or more.

(6.10) Shellfish, squid, and products derived from shellfish and squid.

Due to texts in Clause (6) exclude food which contained allergens or hypersensitivity substances as main ingredients which their names have been clearly declared as allergens or hypersensitivity substances such as fresh cow's milk, baked peanuts.

(7) Declare food additives information. If food additives are carried over into a food in sufficient amount to perform technological functions in that food as results of the use of raw materials or other ingredients, therefore functional classes of such food additives shall be specified. For preservatives, flavor enhancers, sweeteners and colors the following texts shall be declared, as the case maybe;

(7.1) Name of Functional class of "Color" follows with specific name or International Numbering System (INS) for Food Additives, the type of color, whether natural or synthetic may be specified

(7.2) Name of Functional class of "Preservatives" follows with specific name or International Numbering System: INS for Food Additives.

(7.3) Name of Functional class of "flavoring enhancers and sweeteners" follows with specific name.

For food additives other than preservatives, flavor enhancers, sweeteners, and colors, text of "food additive" may be displayed instead of functional class titles of food additives together with specific names or with International Numbering System: INS for Food Additives

(8) Text of "natural imitation odor added", "artificial flavor added", "natural flavor added" or "natural imitation flavor added" if use, as the case maybe.

(9) Display date/month and year when shelf life of such food is not longer than 90 days, or display month and year when shelf life of such food is longer than 90 days, by appeared together with " should consume by" or "Expiration Date".

In case of texts " should consume by" or "Expiration Date" could not be presented, texts on label shall be clearly specified where text of day/month/year or month/year of "expiry date" or "should consume before" or "manufactured" be on the label.

Displaying of date, month and year or month and year shall state as date, month and year or month and year respectively, however, month can be displayed either by number or letters. In case that displaying is not followed by sequencing, clearly

understandable texts or letters shall be conveyed to consumer relating to method of displaying appeared together with the following particulars:

Other than text displayed in Para 1, text of “manufacture” or “expire” may be displayed according to a particular Notification.

May display both English and Thai languages together

Indicating the “expiration date” or “should consume by date”, the numbers showing the date or month and year shall be at least the same period as or after the date or month and year of sale.

(10) Warning statement (if any);

In this case, if there are warnings of the same nature as specified by the Ministry of Public Health, which allows more than one version, can be displayed together by ensuring that the complete text as required by law is shown.

(11) Storage instruction (if any);

(12) Cooking instruction (if any);

(13) Additional texts as specified in an Annex;

(14) Particular texts as specified by particular Notification. Such as Instruction for use and essential text for food intended use for infant or new-born baby or for particular individuals;

When labeling of food not sold directly to consumer or re-packers or food preparation persons or vendors shall have at least particulars in Clause 5 (1) (2) (3) (4) and (9) and texts on label may be made in English instead of Thai language. However, all those particulars specified in clause 5 shall be completely, clearly and legible displayed in sale document all time together with text of “raw materials for food processing only” or any other same meaning of this text on the food label. In case that food manufacturers or importers either use such food in their own food product or sell it directly to food manufacturers with agreement to provide information specified in clause 5 (5), the declaration of percentage of food ingredient specified in clause 5 (5) shall be except in both food labelling and sale document.

Clause 6 Prepackaged foods that have Notifications for specific labeling shall be followed not only those Notifications but also this Notification

Clause 7 Label of food manufactured for export can use any languages but at least shall be displayed as follows:

(1) Manufacturing country;

(2) Food Serial Numbers or Number of food Establishment or Name and address of manufacturing establishments, one or the other.

Clause 8. The following food labels shall be delivered to the Food and Drug Administration for an approval prior to use;

(1) Prescribing controlled foods;

(2) Other Minister prescribed foods.

Clause 9. Displaying of Food Serial Number shall be followed as specified in the FDA Announcement.

Clause 10. Label of foods shall be placed, tagged or presented on containers or packets of food packaging in a prominent position, size of label and containers or packets shall be proportionate.

Clause 11. Label of food shall not mislead either directly or indirectly with food and words, pictures, pictorial, invented designs, mark or trademarks that suggested to other products.

Clause 12. Label presented for claims of substances or other compositions in food shall:

(1) Not classified as food prohibited by the Ministry of Public Health from use, production, or importation.

(2) Does not claim any food additives that do not meet the conditions specified in the notification of Ministry of Public Health regarding food additives

(3) Not apply to food that having particular by nature of such foods no such particular substances or in production process no such substances occurred;

(4) Not be prohibited substances regarding the Notification of Ministry of Public Health;

(5) Not mislead to products.

However, text displayed in Para 1 shall not enforce to claim of substances or other compositions as specified in particular Notifications of Ministry of Public Health or it is providing information in a manner that explains or emphasizes the differences in the

product's components based on factual statements, ensuring transparency to consumers and verifiability that avoids misleading them.

Clause 13. Label which displayed trade mark shall specify with “Brand” or “Trade mark” or “Registered trade mark” prominent and readily legible appeared together with brand or trade mark. It can be displayed in English or English language symbols, as appropriate that conveying the same interchangeably meaning.

Clause 14. Presenting name of food in Clause 5(1) shall follow Clause 4 and either following names can be used:

(1) Specific name of food, common name or usual name;

(2) Name use to describe type or kind of foods;

(3) Trade name, use of such name type or kind of foods shall be appeared in the same line together with trade name and size of letters may be different from trade name but shall be legible.

If name of food used may mislead consumer in regard to specific characteristics of such food including origin either texts shall be appeared in conjunction with the name of food including packing media or production methods or true nature and physical condition of the food or parts of animals or plants or origin of food.

Clause 15. Texts on label shall be prominent and readily legible, size of letters and space of label shall be proportionate and shall follow:

(1) Presentation of Text in Clause 5(1), the height of letters shall not be less than 2 mm and shall be readily legible proportionate to area of label and appear in a main part when marketing and shall have horizontally consecutive texts, except for label smaller than 35 cm², sizes of letters not less than 1 mm shall be presented;

(2) Presentation of texts in Clause 5(2), the height of letters shall be as the Food and Drugs Administration prescribed;

(3) Presentation of texts in Clause 5 (4) (5) (6) and (9), the height of letters shall be as follows, as the case maybe,

(3.1) Not less than 1mm if space of label not more than 100 cm², except for label having total space less than 35 cm², presentation of composition can be made on packages instead;

(3.2) Not less than 1.5 mm if space of label more than 100 cm²

(4) Presentation of texts regarding nutrients, nutritive values comparing to WHO, nutrition labelling, GDA labelling, nutrition claim, utilizing food value in sale promotion, defining consumer groups in sale promotion for food as specified in particular Notification of Ministry of Public Health, the height of letters shall not be less than 1 mm.

(5) Presentation of Text in Clause 4 (1) (4) and (9) shall be in prominent position.

Clause 16. Color of background label and color of text shall be contrast which effect to legible text except for the following texts shall have size of letters, color position and style as the case maybe as follows:

(1) Food Serial Numbers shall follow the Food and Drug Administration prescribed.

(2) Presentation of text in Clause 5(14) and (15).

Clause 17. Label of Prepackaged Foods that do not comply with this regulation can still be sold but shall comply with the Notification of the Ministry of Public Health (No. 367) B.E. 2557 regarding Labeling of Prepackaged Foods. However, this shall not exceed two years from the effective date of this Notification.

Clause 18. This Notification shall come into force after the day following date of its publication in the Government Gazette.

Notified on 19th June B.E. 2567 (2024)

(Signed) Somsak Thepsuthin

(Mr. Somsak Thepsuthin)

Minister of Public Health

(Published in the Government Gazette Vol. 141, Special Part 195 Ngor, dated 18th July 2024.)

Note: This English version of the notification is translated to meet the need of the non-Thai speaking people. In case of any discrepancy between the Thai original and the English translation, the former will take priority.

Annex

Attachment of Notification of the Ministry of Public Health (No.450) B.E 2567(2024)

Re: Labeling of Prepackaged Food

Additional texts as specified in the Annex; Clause 5 (13)

Kind of food	Warning texts or others
1. Foods Packed Together with Material Intended for Quality Control Purposes.	“Consist of” (the blank is to denote the form of packing and materials used for food preservation of qualities or standards such as moisture absorption packet, oxygen absorption sack, etc.) to be expressed by red alphabets size of not less than 3 mm. on white background.
2. Foods Containing Aloe Vera	“Should not be consumed by children”, “Not a medical food”, “Stop to consume when unusual symptom occur” to be prominently declared in red alphabets with size of not less than 2 mm. in rectangular frame which its colour contrasted with label background.
3. Foods containing Ginkgo Biloba Leaves or Extraction from Ginkgo Biloba Leaves.	“May slow blood clotting” and “Should not be consumed by children and pregnant woman”
4. Food used aspartame as sweetener	“Phenylketonuria disorder. This product contains phenylalanine”
5. Chia seed and Food containing Chia seed*	“daily intake is no more than 15 g and should take with 1-2 glass of water” for Chia seed or Chia seed powder 100 % “contain chia seed” for Food containing Chia seed”
6. Foods containing added <i>Phytosterols and phytosterol esters or Phytostanol and phyto stanol esters</i> *	1. Shall declare a following text “fortified with plant stanol/sterol consisting of..... gram per.....(serving size)” near Thai language food name on the label .2 shall declare a following warning statement on label to be prominently declared in red alphabets and rectangular frame “daily intake of plant stanol/sterol is no

Kind of food	Warning texts or others
	more than 2 gram” “Should consume fruit and vegetable for maintain normal level of carotenoid in body” “Consume continuously may decrease level of vitamin E ” “patient should consult physician prior to consume” “Children and pregnant women should not be consumed”
7. Jerusalem Artichoke /Sunchoke and Food containing Jerusalem Artichoke /Sunchoke*	Consumption of products in large amount may cause indigestion.
8. Dried Chiangda vegetables and Food containing dried Chiangda vegetables <i>Gymnema inodorum</i> (Lour.) Decne.*	“(1) Children and pregnant women, person has hypoglycemia should not be consumed” (2) “diabetic patient should consult physician prior to consume” (3) “Should not be continuously consumed more than 1 month”

Remark * shall have quality or standard as well as its specification and condition of use in accordance with the Notification of the Ministry of Public Health (No.376) B.E 2559 (2016) Re: Novel food and a particular notification and relevant Notifications.